

SENATE BILL 1979

By Watson

AN ACT to amend Tennessee Code Annotated, Title 49
and Title 68, relative to student health.

WHEREAS, President Donald J. Trump issued Executive Order No. 14327 on July 31, 2025, to reestablish the Presidential Fitness Test and the President's Council on Sports, Fitness, and Nutrition in order to "address the threat to the vitality and longevity of our country that is posed by America's declining health and physical fitness" and to reverse the health crisis in America attributable to "rates of obesity, chronic disease, inactivity, and poor nutrition ... particularly among our children"; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) Each LEA and public charter school shall administer the Presidential Fitness Test established by Executive Order No. 14327 of the president of the United States on July 31, 2025, to students in order to assess their strength, endurance, and flexibility.

(b) The department of education shall advise each LEA and public charter school in writing, no less than thirty (30) days before the start of the school year during which the Presidential Fitness Test will be administered, of the requirements for students to earn the Presidential Fitness Award. The requirements for a student to earn the Presidential Fitness Award must be the same as those established by the President's Council on Sports, Fitness, and Nutrition established by Executive Order No. 14327 of the president of the United States on July 31, 2025.

(c)

(1) Each LEA and public charter school shall provide a student with an individualized education program (IEP) under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.) or a Section 504 plan under the Rehabilitation Act (29 U.S.C. § 701 et seq.) with any reasonable and appropriate accommodations on the Presidential Fitness Test, as may be recommended or required by the President's Council on Sports, Fitness, and Nutrition. This section does not require a student with an IEP or Section 504 plan to be administered the Presidential Fitness Test if the student is unable to participate in the Presidential Fitness Test safely, with or without an accommodation.

(2) The Presidential Fitness Test may be administered by an LEA or public charter school during a physical education class or any other period of physical activity required pursuant to § 49-6-1021.

(3) A student's performance on the Presidential Fitness Test must not negatively affect the student's grade in any class or subject, including a physical education class required pursuant to § 49-6-1021.

(d) The Presidential Fitness Test must be administered to students in accordance with this section each school year for which the department provides LEAs and public charter schools with the written notice required in subsection (b).

(e) If authorization for the Presidential Fitness Test is revoked on or after the effective date of this act, then the department shall immediately notify each LEA and public charter school in writing of any such revocation and shall submit a report to the education committee of the senate and the committee of the house of representatives having jurisdiction over kindergarten through grade twelve (K-12) education no later than ninety (90) days from the date of the revocation that provides, for each school year for which the Presidential Fitness Test was administered, the number of students:

(1) Enrolled in each LEA and public charter school in a grade level for which the Presidential Fitness Test was administered;

(2) Who participated in the Presidential Fitness Test at each LEA and public charter school, disaggregated by:

(A) Grade level; and

(B) The number of students in each grade level with an IEP or Section 504 plan, further disaggregated by the number of students who received an accommodation on the Presidential Fitness Test; and

(3) Who received the Presidential Fitness Award.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.